

Session and Chapter.	Short Title.	Extent of Repair.
41 & 42 Vict. c. 51.	Roads and Bridges (Scotland) Act, 1878.	Section forty-two, the words "at any annual general meeting." Section fifty-seven, the words "in a summary manner before the sheriff (whose decision shall be final)." Section fifty-eight, the words "to be given at their annual general meeting."
41 & 43 Vict. c. 58.	Locomotives Amendment (Scotland) Act, 1878.	Section four.
52 & 53 Vict. c. 50.	Local Government (Scotland) Act, 1889.	Section eight, the words "for the purposes herein-after mentioned and;" and the words in subsection two, "arising under this section." Section fifty-one, the first proviso. Section seventy-three, subsection two, the words "and the annual general meeting of county road trustees." Section ninety-five, from the words "or the limit within which" to the end of the section.
55 Vict. c. 12.	Roads and Bridges (Scotland) Amendment Act, 1892.	Section one.
57 & 58 Vict. c. 58.	Local Government (Scotland) Act, 1894.	In subsection (7) of section nineteen, the words "sitting as a district committee."

CHAPTER 63.

An Act to amend the Laws relating to Education in Scotland, and for other purposes connected therewith.
[21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act may be cited as the Education (Scotland) Act, 1908, and this Act and the Education (Scotland) Acts, 1872 to 1893, the Education (Scotland) Act, 1897, the Education (Scotland) Act, 1901, and the Education of Defective Children (Scotland) Act, 1906, shall, so far as consistent with the tenor thereof, be construed together as one Act, and may be cited as the Education (Scotland) Acts, 1872 to 1908.

Short title and construction.
60 & 61 Vict. c. 62.
1 Edw. 7. c. 6.
6 Edw. 7. c. 6.

Extent of Act.

2. This Act shall extend to Scotland only.

Additional
general
powers of
school board.

3. It shall be lawful for a school board, if they think fit in addition to any powers already vested in them, to incur expenditure, and to defray the same out of the school fund, in carrying out or in combining with one or more school boards to carry out the following objects (that is to say):—

- (1) In providing any form of education or instruction which may from time to time be sanctioned by any code or minute of the Department :
- (2) In providing accommodation, apparatus, equipment, and service for the preparation and supply of meals to pupils attending schools within their district : Provided that no expense incurred in the purchase of food prepared and served at such meals shall be defrayed out of the school fund except as herein-after provided :
- (3) In bringing opportunities for education within easier reach of children in outlying parts of their district, whether by providing means of conveyance, or paying travelling expenses for teachers or pupils to and from their homes, or defraying the cost of lodging pupils in convenient proximity to a school (provided such cost shall not exceed the amount which might alternatively have been incurred in paying travelling expenses for such pupils), or otherwise :
- (4) In contributing towards, or where deemed expedient providing for, the maintenance and education in homes or other institutions within or without the district of the school board (with due regard to the religious persuasion of the parents) of epileptic or crippled or defective children within the meaning of the Education of Defective Children (Scotland) Act, 1906, and in paying the cost of conveying such children to and from such homes or institutions :
- (5) In maintaining or combining with other bodies to maintain any agency for collecting and distributing information as to employments open to children on leaving school :
- (6) In providing any or all of the pupils in attendance at any or all of the state-aided schools within their district with school books, writing materials, stationery, and other articles of a similar nature, where the school board shall consider such provision required :
- (7) In paying such reasonable expenses incidental to the proper discharge of the duties of the school board as may be sanctioned by minutes of the Department : Provided that no such minute shall come into force until it has lain for not less than one month upon the table of both Houses of Parliament.

Edw. 7. c. 10

Medical in-
spection of
children.

4. A school board may, and where required by the Department shall, provide for the medical examination and supervision

of the pupils attending schools within their district to such extent and subject to such requirements as may from time to time be prescribed by any code or minute of the Department, and, for the purposes of this section, the school board may employ medical officers or nurses, or arrange with voluntary agencies for the supply of nurses, and provide appliances or other requisites. It shall be a condition of grant to the managers of any school within the district of the school board at which there is not provision to the satisfaction of the Department for the medical examination and supervision of the pupils that such managers shall give admission and all necessary facilities for the discharge of his duties to any person so employed or supplied.

5. It shall be lawful for a school board which makes special provision for the education of physically or mentally defective children to require the parents of such children to provide efficient education for such children up to the age of sixteen years. Defective children.

6.—(1) When as the result of medical inspection or otherwise it is brought to the notice of a school board that a child attending a school within their district is in a filthy or verminous state, or is unable by reason of lack of food or of clothing to take full advantage of the education provided, it shall be the duty of the school board, after due warning, to summon either or both of the parents or the guardian of such child to appear before them to give an explanation of the child's condition, and, if the school board shall find that such explanation is not forthcoming or is insufficient or unsatisfactory, and that the condition of the child is due to neglect, they shall transmit a copy of such finding to the parent or parents or guardian of the child and to the procurator fiscal, and it shall be the duty of the procurator fiscal to institute a prosecution under the subsection immediately following. Neglected children.

(2) Without prejudice to the general operation of the Prevention of Cruelty to Children Act, 1904, or any Act amending the same, neglect to exercise due care of a child as aforesaid shall be deemed wilful neglect likely to cause the child unnecessary suffering within the meaning of such Act, punishable summarily as an offence of cruelty in terms of such Act, and subject to the provisions thereof as to the committal and custody of the child and otherwise : † Edw. 7. c.

Provided that if it shall be shown to the satisfaction of the school board, or in the event of a prosecution under such Act of the sheriff, that such parent or parents or guardian are unable by reason of poverty or ill-health to supply sufficient and proper food or clothing for the child, or to give the child the necessary personal attention, the school board, if satisfied that the necessities of the case will not be provided for by voluntary agency, shall make such provision for the child out of the school fund as they deem necessary during such period while the child is under obligation to attend school as they may determine :

But it is hereby provided that any aid given in terms of this section shall not deprive such parent or guardian of any franchise, right, or privilege, or subject him to any disability :

Provided also that the school board, where they deem it necessary owing to the condition of the child, shall have power to make temporary provision for the child out of the school fund pending the completion of the procedure hereby prescribed, and to recover the cost of such provision from such parent or guardian as an alimentary debt, unless it is shown to the satisfaction of the school board that such parent or guardian was unable by reason of poverty or ill health to supply sufficient and proper food or clothing for the child, or to give the child the necessary personal attention.

Provisions as to parents' obligation and school attendance.

7.—(1) It shall be the duty of every parent to provide efficient education for his children who are between five and fourteen years of age.

(2) A school board shall have power, with the approval of the Department, to prescribe two or more dates in each year as the dates of commencing and terminating school attendance for children within their district, and publication of the prescribed dates shall be made by advertisement or otherwise as the school board think fit.

(3) For the purposes of this section a child shall be deemed to attain the age of five years on the prescribed date next succeeding the fifth anniversary of the child's birth, and shall be deemed to attain the age of fourteen years on the prescribed date next succeeding the fourteenth anniversary of the child's birth.

(4) When a child who is under the obligation to attend school is removed from any public or inspected school, it shall be the duty of the head teacher of the school to issue to the parent of the child a certificate showing the period during which the child was in attendance at the school, the number of attendances made during that period, and the class of the school in which the child was placed for purposes of instruction at the time of removal. Such certificate or certificates shall be exhibited by the parent upon any application for the admission of the child to any other public or inspected school, and shall also be taken into consideration by a school board upon any application for the exemption of the child from the obligation to attend school.

Power for school board to pronounce order.

8. If it appears to a school board that the parent of any child without reasonable excuse is neglecting to provide efficient education for his child in terms of this Act, or failing to secure the regular attendance of his child at some public or inspected school, it shall be lawful for the school board, after due warning to the parent, to summon such parent to appear, with or without the child, before the school board at any meeting thereof, and to require from him every information and explanation respecting such neglect or failure of duty ; and if he, or some person on his behalf, either does not appear, or appears and does not

satisfy the school board that he has not failed in such duty without reasonable excuse for such failure, it shall be lawful for the school board to order in writing that the child do attend some public or inspected school willing to receive him and named in the order, being either such as the parent may select, or, if he does not select any, then such as the school board think expedient, and the child shall attend that school every time the school is open, or in such other regular manner as is specified in the order. The school board shall cause a copy of the said order to be sent to the parent by registered letter, and a certificate under the hand of the clerk of the school board to the effect that such order has been made and sent to the parent as aforesaid shall be received as evidence of what is stated therein. An order made by a school board under this section shall be known and referred to as an attendance order, and references in any Act to an attendance order shall be construed as references to an attendance order under this section :

Provided that any parent aggrieved by the making of an order under this section may appeal to the sheriff, who shall have power either to confirm or to annul the order, and the sheriff's decision shall be final.

9.—(1) It shall be lawful for a school board in granting exemption from the obligation to attend school under section three of the Education (Scotland) Act, 1901, to impose as a condition of such exemption (in addition to any other lawful conditions) such attendance as the school board shall prescribe—

Amendment
law as to ex-
emption cer-
tificates.

1 Edw 7, c. 9

(a) at a day school, or

(b) where a suitable continuation class is available, at such continuation class, or

(c) partly at such school and partly at such continuation class,

after the age of fourteen years, and until such age not exceeding sixteen years as the school board shall think fit.

(2) The school board may on cause shown remit or modify any condition imposed under this section.

(3) If any person knowingly employs a young person above the age of fourteen years at any time when his attendance at a school or a continuation class is required by a condition imposed under this section, or for a number of hours which, when added to the time required under this section to be spent at a continuation class, causes the hours of employment and the time so spent, taken together, to exceed in any day or week, as the case may be, the period of employment permitted for such young person by any Act of Parliament, he shall be liable on summary conviction to a penalty not exceeding twenty shillings, or in case of a second or subsequent offence, whether relating to the same or to another young person, not exceeding five pounds.

(4) If any parent of a young person by wilful default or by habitually neglecting to exercise due care has conduced to the commission of an offence under the immediately preceding subsection, or otherwise the failure on the part of the young

person to attend at a school or a continuation class at a time when his attendance is required by a condition imposed under this section, he shall be liable on summary conviction to the like penalties as aforesaid.

provision of
attendance
at con-
tinuation
class.

10.—(1) Without prejudice to any other power of a school board to provide instruction in continuation classes, it shall be the duty of a school board to make suitable provision of continuation classes for the further instruction of young persons above the age of fourteen years with reference to the crafts and industries practised in the district (including agriculture if so practised and the domestic arts), or to such other crafts and industries as the school board, with the consent of the Department, may select, and also for their instruction in the English language and literature, and in Gaelic-speaking districts, if the school board so resolve, in the Gaelic language and literature. It shall also be their duty to make provision for their instruction in the laws of health and to afford opportunity for suitable physical training.

(2) If it is represented to the Department on the petition of not less than ten ratepayers of the district that a school board are persistently failing in their duty under the foregoing subsection, the Department shall cause inquiry to be made and may call upon the board to institute such continuation classes as appear to the Department to be expedient, and, failing compliance, may withhold or reduce any of the grants in use to be made to the board.

(3) It shall be lawful for a school board from time to time to make, vary, and revoke byelaws for requiring the attendance at continuation classes, until such age not exceeding seventeen years as may be specified in the byelaws, of young persons above the age of fourteen years within their district who are not otherwise receiving a suitable education, or are not specially exempted by the school board from the operation of the byelaws; and that at such times and for such periods as may in such byelaws be specified. Such byelaws may also require all persons within the district having in regular employment any young person to whom such byelaws apply to notify the same to the board at times specified in the byelaws, with particulars as to the hours during which the young person is employed by them:

Provided that no young person shall be required to attend a continuation class held beyond two miles measured along the nearest road from the residence of such young person.

& 61 Vict.
38.

(4) Sections one hundred and eighty-five, one hundred and eighty-six, and one hundred and eighty-seven of the Public Health (Scotland) Act, 1897, which are set out in the First Schedule to this Act, shall apply to byelaws made under this section as if they were herein re-enacted, with the substitution of the Department for the Board and of the school board for

(5) If any person fails to notify the school board in terms of any such byelaw in regard to young persons employed by him, or knowingly employs a young person at any time when his attendance is by any such byelaw required at a continuation class, or for a number of hours which, when added to the time required under any such byelaw to be spent at a continuation class, causes the hours of employment and the time so spent, taken together, to exceed in any day or week, as the case may be, the period of employment permitted for such young person by any Act of Parliament, he shall be liable on summary conviction to a penalty not exceeding twenty shillings, or in case of a second or subsequent offence, whether relating to the same or to another young person, not exceeding five pounds.

(6) If any parent of a young person by wilful default, or by habitually neglecting to exercise due care, has conduced to the commission of an offence under the immediately preceding subsection, or otherwise to failure on the part of the young person to attend a continuation class as required in any such byelaw, he shall be liable on summary conviction to the like penalties as aforesaid.

11. All prosecutions for offences under either of the two immediately preceding sections of this Act shall take place before a court of summary jurisdiction as defined in the Education (Scotland) Act, 1883, in the manner provided by the Summary Jurisdiction Acts, and penalties shall be recoverable by imprisonment in terms of those Acts.

Summary
Jurisdiction
Acts to apply
16 & 17 Vict.
c. 56.

12.—(1) Subsection (6) of section twelve of the Elementary School Teachers (Superannuation) Act, 1898, which restricts the power of a school board to award and pay retiring allowances to teachers under section sixty-one of the Education (Scotland) Act, 1872, shall cease to have effect, and a school board may also, if they think fit, extend the benefit of the last-mentioned section to any teacher formerly in their employment to whom, but for the operation of the said subsection, it would have been lawful for them to award and pay a retiring allowance.

Power to gra-
pensioners, &c.
61 & 62 Vict.
c. 87.
35 & 36 Vict.
c. 62.

(2)—(a) The governing body of any school administered under a scheme approved in terms of the Educational Endowments (Scotland) Act, 1882, or under any Act, or any Provisional Order confirmed by Act of Parliament; and

45 & 46 Vict.
c. 59.

(b) the governing body of a central institution; and

(c) a provincial committee

shall, notwithstanding anything contained in any scheme, Act, or Order, have the like power as a school board to award and pay retiring allowances to teachers out of the funds administered by them respectively.

13. Where a school board, or the governing body of any school administered under a scheme approved in terms of the

Grants in aid
of retiring
allowances

& 62 Vict.
67.

Act or any Provisional Order confirmed by Act of Parliament, or the managers of any other school in receipt of grants from the Department, have, prior to the commencement of this Act, awarded, or, after such commencement, award a retiring allowance to a teacher, it shall be lawful for the Department to make to such school board, governing body, or managers a grant not exceeding one-half of the allowance so payable in any year; provided that if the said allowance, together with any allowance payable under the Elementary School Teachers (Superannuation) Act, 1898, exceed one-sixtieth of the teacher's salary (reckoned on the average of the three years preceding retirement) for each year of recorded service, or two-thirds of the said salary in all, no grant shall be made in respect of such excess:

Provided further that where, prior to the commencement of this Act, a governing body as aforesaid or any joint or central board on their behalf have established a superannuation fund to which they respectively contribute, directly or indirectly, the superannuation allowance awarded to a teacher to the extent represented by the sum so contributed shall be held to be a retiring allowance within the meaning of this section.

Superannuation
scheme
for teachers.

14.—(1) Upon a teachers' superannuation scheme as hereinafter provided taking effect, it shall be lawful for the Department in respect of each year to deduct from the grants payable to school boards, governing bodies, and other managers of schools in receipt of grants under any code or minute of the Department, the prescribed sum, not exceeding six per centum of the salaries for that year, ascertained in the prescribed manner, of the teachers to whom the scheme applies.

(2) The sum so deducted in respect of any year, together with such additional annual sum payable from the Education (Scotland) Fund as shall be prescribed in the scheme, and with any other money that may be available under the provisions of this section, shall, with any interest thereon, constitute the Scottish Teachers' Superannuation Fund and be administered by the Department in accordance with the scheme for the purposes thereof.

(3) In consideration of the deduction aforesaid school boards, governing bodies, and other managers may deduct, in respect of each year, from the salary of every teacher to whom the scheme applies the prescribed sum, not exceeding four per centum thereof.

(4) The Department shall, as soon as may be after the passing of this Act, after such inquiry as they think fit, prepare on actuarial advice a superannuation scheme applicable to such teachers as shall be prescribed therein.

(5) The scheme shall include provision—

- (a) for the payment by the Department to the teacher on retirement after attaining the prescribed age (which shall if so prescribed be different for men and women), or on retirement in case of permanent

incapacity; of a retiring allowance not exceeding the prescribed proportion for each completed year of service as a teacher in Scotland of the pensionable salary of the teacher, that is to say, the amount representing the average salary of the teacher either throughout his service or during such number of years immediately preceding retirement as shall be prescribed: Provided that a retiring allowance shall not be payable in respect of less than ten completed years of service, and shall be subject to the prescribed reduction in respect of years of service before the scheme takes effect during which no deduction has been made from the salary of the teacher as aforesaid;

(b) for the payment by the Department, except as otherwise prescribed, to any teacher ceasing to serve as such without claim to a retiring allowance, and to the personal representative of any teacher who dies in service, on their respective application, of a sum equal to the full amount of all deductions made from the salary of the teacher as aforesaid; and

(c) for the payment by the Department, on application, to the personal representative of any person who at the time of his death is in receipt of a retiring allowance in terms of the scheme, of the amount, if any, by which the sum of all the instalments of allowance paid to such person falls short of the full amount of all deductions made from the salary of such person as aforesaid;

(d) for the payment by the Department to any person who at the date when the scheme takes effect is in receipt of an allowance under the Elementary School Teachers (Superannuation) Act, 1898, or of a teacher's retiring allowance from a school board, or from the governing body or managers of any school in receipt of grant from the Department, or of a teacher's superannuation allowance from a governing body as aforesaid or any joint or central board on their behalf, of a retiring allowance not exceeding the allowance, if any, which would have been payable to such person on retirement in terms of the scheme: Provided that the payment of a retiring allowance under this enactment shall to the extent thereof relieve such school board, governing body, managers, or joint or central board of liability to pay the retiring or superannuation allowance granted by them respectively to any such person.

(6) Upon the scheme taking effect, the Elementary School Teachers (Superannuation) Act, 1898, shall cease to apply to Scotland subject to such adjustment of existing interests as may with the consent of the Treasury be prescribed: Provided

61 & 68 Vict.
c. 57.

that, in consideration of the cessation of payments by the Treasury in terms of the said Act, there shall be paid in each year to the Education (Scotland) Fund, to be applied as part of that fund such sum equivalent to, or in commutation of, such payments as the Treasury may determine.

(7) Upon the scheme taking effect the section of this Act whereof the marginal note is "Grants in aid of retiring allowances" shall, as respects any person to whom the scheme applies, cease to have effect.

(8) The Department and the managers of any superannuation fund applicable to teachers established under any Act or any Provisional Order confirmed by Act of Parliament may notwithstanding the provisions of any such Act or Order agree for the carrying on or the discontinuance, in whole or in part and subject to such financial or other adjustment as may seem necessary, of such superannuation fund, and for altering, varying, amending, or limiting the terms, conditions, regulations, and provisions thereof, and any such agreement shall form part of the scheme or of an amendment thereof.

(9) The scheme shall make such other provision as appears necessary to carry out the purposes of this section, and without prejudice to the generality of this enactment may apply, with such modifications as appear necessary, any provisions contained in any Act of Parliament or Provisional Order confirmed by Act of Parliament dealing with superannuation, including any penal provisions thereof.

(10) With a view to the making of a scheme the Department shall cause a draft scheme to be printed and printed copies of it to be sent to all school boards, governing bodies, and other managers of schools in Scotland in receipt of grant under any code or minute of the Department, and shall also at the same time cause the draft scheme to be published in such manner as they think sufficient for giving information to all persons interested.

(11) During three months after the publication of the draft scheme the Department shall receive any objections made to them in writing by any public body or persons interested and any amendments proposed thereon, and as soon as may be after the expiration of the said three months the Department shall proceed to consider such objections and amendments: Provided that in computing the period of three months for the purposes of this section the months of July, August, and September shall not be counted, nor any part thereof.

(12) Thereafter it shall be lawful for the Department to make and issue a teachers' superannuation scheme in accordance with the said draft scheme or a modification thereof: Provided that such scheme shall be forthwith laid before both Houses of Parliament if Parliament be sitting, or, if not, then within three weeks after the commencement of the next ensuing session of Parliament, and, if neither House of Parliament within three months, exclusive of any period of prorogation, after a scheme

has been laid before it presents an address praying the King to withhold his assent from such scheme or any part thereof, it shall be lawful for the King in Council by Order to approve the same or any part thereof to which such address does not relate. The presentation of an address as aforesaid shall be without prejudice to the making of a further scheme under the like procedure.

(13) A scheme under this section may be amended by a subsequent scheme made under the like procedure.

(14) Any scheme approved by Order in Council under this section shall, as from the date prescribed in such Order, be of the same force as if it were enacted in this Act.

(15) In this section the expression "prescribed" means prescribed in the scheme, and other expressions not specially defined in this Act have the meaning assigned thereto in the scheme.

15. The following sums payable out of the Local Taxation (Scotland) Account in the financial year commencing on the first day of April one thousand nine hundred and nine, and in any subsequent financial year, namely:—

(1) The sum not exceeding forty thousand pounds mentioned in subsection (ii) of section two of the Local Taxation (Customs and Excise) Act, 1890;

Constitution
Education
(Scotland)
Fund.

53 & 54 Vict.
c. 60.

(2) That portion of the residue mentioned in subsection (iii) of section two of the said Act directed to be distributed under subsection (b) thereof;

(3) The sum of sixty thousand pounds mentioned in subsection (1) of section two of the Education and Local Taxation Account (Scotland) Act, 1892;

55 & 56 Vict.
c. 51.

(4) The balance (if any) available under subsection (6) of section two of the last-mentioned Act; and

(5) The balance mentioned in subsection (4) of section two of the Local Taxation Account (Scotland) Act, 1898—

61 & 62 Vict.
c. 56.

shall no longer be applied or distributed as provided in those Acts, but shall be paid into one fund hereby constituted, to be distributed by the Department and to be known and referred to as the Education (Scotland) Fund. To this fund shall also be paid in each financial year—

(6) Any sum voted by Parliament for that year as a general aid grant for education in Scotland, after deduction therefrom of such amount as may require to be added to any sum voted for that year as a fee grant in order to maintain the fee grant at the rate of twelve shillings per child in average attendance; and such amount shall be deducted and added accordingly.

16.—(1) Notwithstanding anything contained in the before-mentioned Acts the Education (Scotland) Fund in any year shall be applied to the following purposes (that is to say):—

Application
Education
(Scotland)
Fund.

(a) To providing for the expenses of the inspection and examination of secondary and intermediate schools and

of conducting the leaving certificate examination in so far as such expenses are not provided for from money voted by Parliament;

- (b) To making payment to the universities of Scotland, in addition to any sums otherwise payable to them under any Act, of such sums in respect of yearly maintenance expenditure as the Secretary for Scotland, on application by the university courts or any of them may determine after consideration of the results of such inquiries as he may from time to time direct to be made by a special committee appointed by him: Provided that each university court shall make an annual report to the Secretary for Scotland as to the mode in which it has applied any sum so granted;
- (c) To making payment to central institutions in respect of either capital or maintenance expenditure of such sums as the Department may determine, being in respect of maintenance sums not less in amount than the sums paid to such institutions respectively for the like purpose in the year ending the thirty-first day of March one thousand nine hundred and nine by county councils and town councils from the amounts received by such councils under subsection (iii) (b) of section two of the Local Taxation (Customs and Excise) Act, 1890;
- (d) To making payment to the provincial committees established by the minute of the Department dated the thirtieth day of January one thousand nine hundred and five, or to any bodies that may hereafter be appointed in lieu thereof, in addition to any sums voted by Parliament for the training of teachers, of such sums as may be required to meet their approved expenditure for the like purpose;
- (e) To making payment of grants in aid of retiring allowances to teachers as in this Act authorised; and
- (f) To providing for any other educational expenditure approved by the Department and set forth in minutes laid before Parliament: Provided that no minute of the Department framed under this section shall come into force until it has lain for not less than one month on the table of both Houses of Parliament.

(2) After providing for the foregoing payments, the balance of the Education (Scotland) Fund that may remain in any year shall be allocated and set apart for the promotion of education in each and every district for which a committee on secondary education (hereinafter referred to as the committee) was appointed by the minute of the Department, dated the tenth day of June, one thousand eight hundred and ninety-seven, in accordance with a scheme of allocation prepared by the Department, and so framed as to give greater aid to those districts in

which per head of the population the burden of expenditure on educational purposes approved by the Department is excessive as compared with the valuation of the district: Provided that such scheme shall be forthwith laid before both Houses of Parliament if Parliament be sitting, or, if not, then within three weeks, after the commencement of the next ensuing Session of Parliament, and, if neither House of Parliament within one month, exclusive of any period of prorogation, after a scheme has been laid before it, presents an address praying the King to withhold his assent from such scheme or any part thereof, it shall be lawful for the King in Council by Order to approve the same or any part thereof to which such address does not relate. The presentation of an address as aforesaid shall be without prejudice to the making of a further scheme under the like procedure.

(3) A scheme under this section may be amended by a subsequent scheme made under the like procedure.

(4) Any scheme approved by Order in Council under this section shall, as from the date prescribed in such Order, be of the same force as if it were enacted in this Act.

17. The amount allocated as aforesaid to the district of a committee in any year shall be known and referred to as the district education fund, and shall be applied, in accordance with the procedure prescribed in the next following section, for the purpose of the various payments hereinafter specified (that is to say):—

Application of district education funds.

- (1) Where a school board provide and maintain an intermediate or secondary school which is recognised by the Department as efficient, and which is attended by children whose parents are resident outwith the school board district in which the said school is situated, there shall be paid in each year to the school board from the district education fund of each district in which any such parents are so resident a sum equal to the cost of the education of such children (including in such cost interest of loans on account of capital expenditure), such sum to be calculated upon the average attendance of such children and the average cost of the education of pupils in the said school, after deduction of income from all sources other than from school rate: Provided that, in the case of pupils who are being lodged within the said school board district for the purposes of their education, no payment shall be made under this subsection from the district education fund of any district other than that of which the school board district forms a part, except in respect of pupils receiving aid under or in conformity with the district bursary scheme for the district in which their parents are resident to be framed as hereinafter provided.

- (2) Where a school board within the district of a committee provide and maintain an intermediate or secondary school recognised as aforesaid, or a recognised Division III. course under the continuation class commenced the eleventh day of May nineteen hundred and eight, or any recognised course which may hereafter come in place thereof under other regulations of the Department, there shall further be paid in each year to the school board a sum equal to one-half of the amount by which the collective cost to the school board of such provision and maintenance after deduction of income from grants made by the Department or from fees, and of any sum paid to the school board under the immediately preceding subsection, exceeds the amount which would be produced by such rate per pound upon the district of the school board as the committee may determine, not being more than a rate of twopence in the pound :
- (3) On good cause shown, an additional payment may be made in any year to a school board within the district of the committee in respect of any intermediate or secondary school under their management recognised as aforesaid :
- (4) Where a school within the district of a committee, not being a school under the management of a school board, and not being a school conducted for private profit, is in receipt of grants from the Department as a recognised intermediate or secondary school—
- (a) if the school is attended by children whose parents are ordinarily resident outwith the school board district in which the said school is situated there shall be paid in each year to the governing body of such school, from the district education fund of each district in which any such parents are so resident, the like sum as is required to be paid to a school board in terms of subsection (1) of this section, provided always that the average cost therein referred to is approved by the Department as reasonable, and provided also that in lieu of the deduction of income from all sources, other than from school endowments, fees, and other sources, there shall be deducted all income from grants made by the Department and from fees ; and
- (b) a further payment may be made in any year to the governing body from the district education fund of the district in which the school is situated for the purpose of maintaining the school in a state of efficiency, regard being had to the income from endowments, fees, and other sources, and to the cost per pupil of providing intermediate and secondary

education in schools under the management of school boards :

- (5)--(a) Payments may be made in any year to the committee towards meeting the expenses of a scheme framed by the committee in accordance with general regulations prescribed by the Department (in this Act referred to as the district bursary scheme) for the purpose of enabling duly qualified pupils in each and every part of the district, by means of bursaries or otherwise, to obtain education at an intermediate or secondary school recognised as aforesaid, or, in circumstances approved by the Department, at a supplementary course of not less than three years' duration conducted in accordance with Article 21 of the code of regulations for day schools of 1908, or under other regulations of the Department that may come in place thereof, or, where deemed expedient, at an agricultural college, a technical college, or other central institution, or at an university or a training centre or training college :
- (b) Payments may also be made in any year to the committee as contributions in aid of the travelling expenses and the maintenance when residing away from home—
 - (i) of teachers serving in schools within the district when such teachers are attending classes under Article 55 of the regulations for the preliminary education, training, and certification of teachers, dated the tenth day of April nineteen hundred and eight, or under other regulations of the Department which may come in place thereof ; and
 - (ii) of persons selected by the committee to attend special courses within or without their district provided by the governing body of an agricultural college, a technical college, or other central institution :
- (6) Where under section four of this Act a school board provide for the medical examination and supervision of the pupils attending schools within their district in accordance with a scheme prepared by the committee, or where a school board district is co-extensive with the district of a committee by the school board, and in either case approved by the Department, there shall be paid in each year to the school board a sum equal to one-half of the cost incurred by them in making such provision :
- (7) Where a committee see fit to appoint a secretary or organiser of instruction, or any teachers of special subjects, such as agriculture, horticulture, household management, physical exercises, music, or drawing, to give instruction under the committee's direction,

specified centres within the district, or to supplement the staff of any school or schools the managers of which cannot reasonably be expected to provide such special teachers, payment of the salaries and expenses of such officers or teachers may be made to the committee. Provided that, when the special subject falls within the scope of work of an agricultural college or other central institution or of the provincial committee, the scheme of instruction shall be arranged in conjunction with the said central institution or provincial committee :

- (8) Payments may also be made in any year to any school board within the district of a committee, as contributions in aid of capital expenditure on schools or classrooms for the education of physically or mentally defective, blind, or deaf-mute children, school gardens, workshops, laboratories, rooms for cookery and laundry work, or such other equipment as may be required for the use of any special teachers appointed by the committee under the immediately preceding subsection, or of similarly qualified teachers appointed and paid by the school board. Any such contribution may be paid in one sum or spread over a number of years, but shall in no case exceed one-half of the capital expenditure in respect of which it is made :
- (9) The grants in aid of additional staff for small schools payable under section II.D of the minute of the Department dated the twenty-fifth day of February one thousand nine hundred and eight, and the grant for the employment of Gaelic-speaking teachers under section II.C (2) of that minute, shall be paid in the year commencing the first day of April one thousand nine hundred and nine to school boards and other managers of schools within the district who have received the same in any of the three years preceding, and continue to fulfil the conditions of the minute, and may be so paid in any subsequent year : Provided that, where a committee recommend an alternative scheme of grants for small schools in rural districts for the purpose of improving the staff of such schools as regards either number or qualifications, payment may be made of such alternative grants, and the two first-mentioned grants or either of them may thereupon be discontinued, provided that twelve months' notice of discontinuance shall have been given by the committee :
- (10) There may also be paid such further sums for the promotion of education within the district as may appear to the Department to be incidental to the district generally rather than to any particular school

- (11) After providing for the aforesaid payments falling to be made in any year, and for the approved expenses of the committee, the balance of a district education fund that may remain in any year shall be distributed to school boards and other managers of schools within the district as an addition to the fee grant.

Any balances of grant remaining in the hands of a committee at the thirty-first day of March one thousand nine hundred and nine shall be deemed part of the district education fund in respect of the year commencing thereafter.

18.—(1) Payments out of the district education funds shall be made to school boards, committees, or other bodies, as the case may be, by the Department. Administration of district education funds.

(2) Where the immediately preceding section requires payments to be made from the district education funds, such payments shall be made in accordance with rules from time to time framed by the Department for determining the average attendance, average or collective cost, and other conditions of such payments.

(3) Where the immediately preceding section permits but does not require payments to be made from the district education funds, such payments and the amount thereof shall be subject to the approval of the Department.

(4) Each committee shall submit annual estimates of proposed expenditure out of the district education fund in accordance with regulations to be made by the Department.

(5) Each committee shall cause accounts to be kept of their income and expenditure in a form prescribed by the Department, and these accounts, together with the relative vouchers, shall be transmitted for examination and report to the accountant of the Department, and the Department shall lay before Parliament in each year an abstract of the said accounts, together with the accountant's report and any decision of the Department thereupon, and also a statement of their contributions with the Education (Scotland) Fund for the year corresponding with that covered by the accounts of the committees.

19. Any balances remaining in the hands of the Department at the thirty-first day of March one thousand nine hundred and nine of the sums paid to them prior to that date under subsection (ii) of section two of the Local Taxation (Customs and Excise) Act, 1890, and subsection (6) of section two of the Education and Local Taxation Account (Scotland) Act, 1892, shall be applied by the Department from time to time till the said balances are exhausted in making grants in aid of capital expenditure incurred by the managers of a recognised central institution in providing buildings or equipment necessary for the purpose of giving advanced technical instruction, or incurred by a school board in providing laboratories, workshops, or other Grants to central institutions, &c. in aid of capital expenditure, 33 & 34 Vict. c. 80, 35 & 36 Vict. c. 51.

equipment approved by the Department for the purpose of an intermediate or secondary school. Such grants may be paid in one sum or by such instalments as may be deemed expedient but no such grant shall exceed one-half of the capital expenditure in aid of which it is made.

Hostels, *

20. A committee on secondary education, or a school board having the management of an intermediate or secondary school may, with the consent of, and subject to any condition prescribed by, the Department establish, maintain, and manage or combine with another or other committees, school boards, or other bodies in establishing, maintaining, and managing, a hostel or hostels for junior students, bursars, or other pupils attending intermediate or secondary schools. The scale of charges for residence and otherwise in connection with any such hostel shall from time to time be so adjusted as to defray as nearly as may be the expenditure in connection therewith not otherwise provided for, provided that a deficit occurring in any year, notwithstanding such adjustment, may, with the approval of the Department, be paid out of the district education fund or funds. Any committee, school board, or other body as aforesaid may, with the consent of the Department, accept and hold any gifts of property for the purposes of this section.

Conditions of
dismissal of
teachers in
certain cases,
§ 16 Vict.
18,

21. If at any time within six weeks after the adoption of a resolution for the dismissal of a teacher in terms of section three of the Public Schools (Scotland) Teachers Act, 1882, a petition shall be presented to the Department by the said teacher, praying for an inquiry into the reasons for the dismissal, the Department shall make such inquiry as they see fit, and if as the result of such inquiry they are of opinion that the dismissal is not reasonably justifiable they shall communicate such opinion to the school board with a view to reconsideration of the resolution, and in the event of the school board not departing from the resolution within six weeks thereafter may attach to the resolution the condition that the school board shall pay to the teacher such sum not exceeding one year's salary as the Department may determine; and any sum so determined may be recovered by the teacher as a debt from the school board: Provided that nothing herein contained shall affect the power of a school board summarily to suspend any teacher from the performance of his duties.

Power to unite
school board
districts.

22.--(1) Where it is represented to the Department by a school board that it would be expedient that the district or part of a district of the said school board should be united with the adjacent district or part of district of another school board so as for all purposes to constitute a district under one school board, the Department shall consult with the authorities concerned and may cause a local inquiry to be held, and, if they are of opinion that the districts should be united, may by order

(2) The proposed order shall be published in the Edinburgh Gazette and in such other manner as to make the same known to parties interested, and the Department shall consider all objections and representations respecting the same, and may, after the expiry of not less than forty days from the date of the publication of the proposed order in the Edinburgh Gazette, finally make the order and cause the same to be forthwith published in the Edinburgh Gazette, and such order shall thereafter have effect as if enacted by Parliament unless or until revoked or modified by subsequent order in terms of this section.

(3) An order under this section may provide for all or any of the matters for which an order of the Secretary for Scotland referred to in section forty-six of the Local Government (Scotland) Act, 1894, may provide, and for the purposes of a local inquiry under this section the provisions of section ninety-three of the Local Government (Scotland) Act, 1889, shall apply with the substitution of the Department for the Secretary for Scotland. 57 & 58 Vict. c. 59.
52 & 53 Vict. c. 59.

23.—(1) The accounts of the receipts and expenditure of a school board shall be kept in the form prescribed by the Department, and shall be made up and balanced to the fifteenth day of May in every year by the treasurer of the school board, and shall be completed and signed by him and by the chairman of the school board before such date as the Department shall from time to time prescribe; and any treasurer failing to do his duty in terms of this subsection may be compelled to do so by Order of the Court of Session on the petition and complaint of the accountant of the Department. Keeping and audit of school board and other accounts

(2) The following regulations with respect to audit shall be observed (that is to say):—

(a) Before each audit the clerk of the school board shall, after receiving from the accountant of the Department the requisite appointment, give at least fourteen days' notice, in such manner as shall be prescribed from time to time, of the time and place at which the audit will be made, and of the deposit of accounts required by this section, and of the name and address of the accountant of the Department;

(b) An abstract in duplicate of the accounts, duly made up, balanced, and signed as aforesaid, shall, together with all assessment books, account books, deeds, contracts, accounts, vouchers, and receipts mentioned or referred to in such accounts, be deposited in the offices of the school board and be open between the hours of eleven forenoon and three afternoon to the inspection of all ratepayers within the district of the school board liable to contribute to the school fund, as herein-before provided, for seven clear days before the audit, and all such persons shall be at liberty to take copies of or

extracts from the same without any fee; and any officer of the school board duly appointed in the behalf refusing to allow inspection thereof shall be liable to a penalty not exceeding five pounds;

(c) For the purpose of any audit under this Act the accountant of the Department may, by demand in writing require the production before him of all books, deeds, contracts, accounts, vouchers, receipts, and other documents and papers which he may deem necessary, and may require any person holding the same, or accountable therefor, to appear before him at any such audit or any adjournment thereof, and to make and sign a declaration as to the correctness of the same; and, if such person neglects or refuses so to appear, or to produce any such books, deeds, contracts, accounts, vouchers, receipts, documents, or papers, or to make or sign such declaration, he shall incur for every neglect or refusal a penalty not exceeding forty shillings; and if he falsely or corruptly makes or signs any such declaration, knowing the same to be untrue in any material particular, he shall be liable to the penalties inflicted on persons guilty of perjury;

(d) Any ratepayer may make any objection to such accounts or any part thereof, and shall transmit the same and the grounds thereof in writing to the accountant of the Department, and a copy thereof to the officer concerned, two clear days before the time fixed for the audit, and any ratepayer may be present at the audit and may support any objection made as herein-before provided either by himself or by any ratepayer;

(e) If it shall appear to the accountant of the Department acting in pursuance of this section that any payment is in his opinion contrary to law and should be disallowed, or that any sum which in his opinion ought to have been, is not brought into account by any person, whether such payment or failure to account has been made matter of objection or not, he shall, by an interim report under his hand, report thereon to the Department setting forth the grounds of his opinion as aforesaid, and the Department shall cause such interim report to be intimated to the objector, if any, and to the officer or other person affected thereby; and after due inquiry the Department shall decide all questions raised by such interim report, and shall disallow all illegal payments and shall allow all sums which ought to have been but have not been brought into account, and, in the event of any expenditure of the same nature as any payment so disallowed being incurred in any subsequent year by any school board to whom such disallowance shall have been timeously notified, the Department shall cause the same to be

should be of opinion that the members authorising such expenditure should be surcharged, may present a petition to either Division of the Court of Session craving to have such expenditure declared illegal, and the said members of the school board ordained to refund the amount of such expenditure in the event of it being declared illegal; and the Court shall, before granting or refusing the prayer of such petition, consider any representations made in answer thereto by the members proposed to be surcharged; and the Court shall have power to find that the expenses of the said proceedings shall be payable by the said members personally or out of the school fund, as may appear just;

- (f) Within fourteen days after the completion of the audit, or, as the case may be, after any proceedings under the immediately preceding paragraph of this subsection have been disposed of, the accountant of the Department shall report on the accounts audited, and shall certify on each duplicate abstract thereof the amount in words at length of the expenditure so audited and allowed, and further that the regulations with respect to the accounts have been complied with, and that he has ascertained by the audit the correctness of the accounts. He shall forthwith send one duplicate abstract of the accounts herein-before mentioned to the school board, who shall cause the same to be deposited in their office, and shall publish such abstract in the form prescribed by the Department in some one or more of the newspapers circulating in the district of the school board. The accountant of the Department shall also forthwith send the other duplicate abstract of the accounts so certified by him to the Department: Provided that, if the Secretary for Scotland shall so determine, such abstract may come in place of and render unnecessary a return of the receipts and expenditure of the school board in pursuance of the Local Taxation Returns (Scotland) Act, 1881;

- (g) Where any surcharge has been made as herein-before provided, or the accountant of the Department has made any interim report or report respecting the accounts or the receipts and expenses of the school board, the school board shall cause the surcharge and interim report or report to be printed and published together with the abstract of their accounts herein-before mentioned, and to be delivered to any ratepayer, as in this section mentioned, who asks for the same, and in case of default in such publication the Department may cause the same to be published, and the cost of such publication, to the amount certified by the Department, shall be added to the school board's

44 & 15 Vict.
c. 16.

to His Majesty, and the clerk of the school board shall be liable in case of default in such publication to a fine not exceeding twenty pounds;

- (h) Notwithstanding anything in this section the Department may by minute prescribe rules modifying either generally or with reference to any one or more school boards any enactment contained in this subsection to the time and place of audit.

(3) It shall be a condition of the payment by the Department of a grant to any school which is not under the management of a school board that the accounts of the income and expenditure of such school shall be set out according to a form prescribed by the Department, and shall together with the relative vouchers and other documents be submitted for examination and report to the accountant of the Department, and the amount of grant shall in no case be greater than the sum shown to the satisfaction of the Department to have been properly expended in giving instruction required or permitted by minutes of the Department in force for the time being.

(4) In this section the expression "accountant of the Department" includes any person or persons appointed from time to time by the Department for the purpose of exercising the power or performing the duties conferred or imposed under the operation of this section upon the accountant of the Department, or any of such powers or duties.

(5) Nothing in this section contained shall affect the accounts of a school board or other managers for the year ending the fifteenth of May, in the year nineteen hundred and nine, or the audit of such accounts, and such accounts shall be kept audited, and otherwise dealt with as if this Act had not passed.

(6) Notwithstanding anything in this section contained, any ratepayer or elector who shall be dissatisfied with the accounts of a school board or any item therein may complain against the same by petition to the sheriff specifying the grounds of objection, and the sheriff shall hear and determine the matter of complaint, and his decision shall be subject to the same right of appeal as in ordinary actions in the sheriff court: Provide always that it shall not be competent to petition the sheriff after the lapse of three months from the date of publication of the abstract of the accounts in terms of subsection (2) (f) of this section.

24.—(1) The forty-fifth section of the Education (Scotland) Act, 1872, shall be read as if after the words "providing for enlarging a schoolhouse" there were inserted the words "or other premises or offices for the use of the school board, or playground or recreation field, or in any works of improving or fitting up a schoolhouse, or such other premises, offices, playground, or recreation field, which, in the opinion of the Department, ought, by reason of the permanent character of

(2) If in any year the school fund shall be insufficient to pay the amount of current annual expenditure falling due at any time, it shall be lawful for the school board to borrow by way of temporary loan or overdraft on the security of the school rate of that year such amount as may be necessary to meet such expenditure, but when any money has been so borrowed on the security of the school rate of any financial year it shall not be competent to borrow on the security of the rates of any other year until the money borrowed as aforesaid shall have been paid off.

25. Where for the purpose of distributing parliamentary or other grants it shall be necessary to ascertain the school rate per pound in any parish or burgh in any year, such rate shall be held to be the fraction of a pound represented by the amount of the deficiency in the school fund divided by a sum equivalent to nine-tenths of the total valuation as in the valuation roll last available of such parish or burgh.

Ascertainment of school rate per pound.

26. Section sixty-two, section sixty-three, and section sixty-four of the Education (Scotland) Act, 1872, shall no longer have effect, but the school board having the management of any school which is a higher class public school within the meaning of the said Act shall be bound to maintain the same in a condition of efficiency as a secondary school within the meaning of this Act, and shall have the same powers of providing for the maintenance thereof from the school fund as they have in respect of any other public school under their management.

Powers of school boards as to maintenance, &c., of higher class public schools.
35 & 36 Vict. c. 62.

27.—(1) The electors for the election of members of a school board shall, at each election after the election taking place in the year nineteen hundred and nine, consist of all parish electors within the meaning of the Local Government (Scotland) Act, 1894, having a qualification within the school board district; and after the last-mentioned election the provisions of paragraph 2 of Schedule B. of the Education (Scotland) Act, 1872, shall cease to have effect: Provided that, notwithstanding anything contained in the Education (Scotland) Act, 1872, the next election after the election in the year nineteen hundred and nine shall take place in the year one thousand nine hundred and eleven, being the year following the year of a parish council election.

School board elections.

57 & 58 Vict. c. 55.

35 & 36 Vict. c. 42.

(2) Section twenty-five of the Education (Scotland) Act, 1878, allowing school boards to have access to the valuation roll, shall be construed as if in addition to the valuation roll the parish council register were specified therein.

41 & 42 Vict. c. 76.

(3) The limitation of the number of members of a school board to not more than fifteen members shall no longer have effect.

28. The power of the Department to send a requisition, under section forty-six of the Educational Endowments (Scotland) Act, 1882, to the governing body of an educational endowment, requiring them to give effect to the provisions of the scheme or provisional order under which the endowment is administered,

Provision for deft-ait of governing body of educational endowment.
45 & 46 Vict.

may be exercised as fully and with the same force and effect, after such inquiry as the Department shall think proper, notwithstanding that no application in terms of that section has been made to them, as upon such an application :

Provided always that, in any proceedings by way of petition and complaint instituted under the above-mentioned section, the court shall consider any representations made in answer to the said petition and complaint by the governing body or other parties interested.

Transfer of endowments to school board.
5 & 16 Vict.
59.

29.—(1) The governing body of any intermediate or secondary school administered under a scheme approved in terms of the Educational Endowments (Scotland) Act, 1882, or under any Act or any Provisional Order confirmed by Act of Parliament, may, with a view to the maintenance of such school as an intermediate or secondary school, resolve to transfer the management thereof, together with the school buildings, and the revenue of the school from endowments in whole or in part, or, where the endowments are held solely for the purpose of such school, together with the endowments, to the school board of the parish or burgh in which the school is situated. The said school board shall have power to receive the same, to manage the school as an intermediate or secondary school, and to make good any deficiency in the income of the school as managed by them from the school fund : Provided that, where the Department are satisfied that the revenue of any school administered as aforesaid, being of a yearly value on an average of the three years immediately preceding of not more than one thousand pounds, is insufficient to maintain the school in a condition of satisfactory efficiency as a place of higher education, the Department may after due notice and inquiry, and after hearing any party who desires to be heard, issue an order transferring the management of the school, together with its buildings and revenue or endowments, as the case may be, as aforesaid to the school board if the school board are willing to undertake the same, and the school board shall in such case have power as aforesaid : Provided that the Department may by order make provision for all matters which appear to them necessary or proper for giving full effect to any transfer under this section, including provision for the determination of any existing trust whose whole endowments are so transferred : Provided also that the direct management of such a school (subject to the limitations upon the powers of managers imposed by section twenty-two of the Education (Scotland) Act, 1872), shall be committed to a committee of management appointed by the school board and constituted in accordance with a scheme approved by the Department.

5 & 36 Vict.
62.

(2) A resolution by a governing body under this section shall not take effect unless it is confirmed by a subsequent meeting called for that special purpose with not less than three weeks notice by circular sent to each member of the governing body to the usual or last known place of abode of such member and held

not sooner than one month nor later than two months after the date of the first meeting, and at such second meeting the requisite majority to secure confirmation shall be not less than the absolute majority of the governing body.

30. When any part of the annual revenue administered under a scheme approved in terms of the Educational Endowments (Scotland) Act, 1882, or under any Provisional Order confirmed by Act of Parliament, is applicable to the granting of bursaries, or to the payment of fees, such part of the revenue, if not on the average exceeding fifty pounds per annum, shall be paid over in each year by the governing body of the endowment to the secondary education committee of the district, to be applied to the granting of bursaries in conformity with the district bursary scheme framed by the said committee, and, if on the average exceeding fifty pounds but not exceeding one thousand pounds per annum, shall, notwithstanding any provision of the scheme hitherto regulating the number, amount, conditions of tenure, or method of award of the bursaries, be applied by the governing body to the granting of bursaries in conformity with the district bursary scheme framed as aforesaid. Any question arising under this section as to the interpretation of the said scheme, or as to what revenues from an endowment are applicable to the granting of bursaries or to the payment of fees, shall be determined by the Department:

Secondary education committees to administer revenues of endowments applicable to bursaries, &c. 45 & 46 Vict. c. 59.

Provided that, when under the scheme hitherto in force a bursary is reserved for the benefit of any particular parish or district, or for any specially privileged class of persons, or is restricted in tenure to any particular school, college, or university, and when duly qualified applicants therefor are forthcoming, the same reservation and the restriction shall hold good with regard to the said bursary by whosoever granted, notwithstanding anything that may be contained in the district bursary scheme, to such extent as funds derived from the endowment may be available:

Provided also that, when the governing body of any such endowment are of opinion that this section is inapplicable or is unfair in its application in the case of the endowment administered by them, they may represent their views to the Department, who, after making such inquiry as they may deem fit, may make an order either exempting the revenue of the said endowment from the provisions of the section, or confirming the application of the section to such revenue.

31. Nothing in this Act contained shall be construed as abolishing or restricting any power of the Department to vary the districts for which a committee on secondary education was appointed by minute of the Department dated the tenth day of June one thousand eight hundred and ninety-seven, or to vary the constitution of any such committee; and the provisions of this Act shall apply to any district or committee so varied as if they were respectively referred to therein.

Saving of powers to vary districts, &c.

Saving for
certain exist-
ing officers.

32. Where a secretary or organiser of instruction or teachers of special subjects have been appointed by, and at the commencement of this Act hold office under, a county council, they shall respectively continue to hold office under the secondary education committee of the district upon the like terms and conditions.

Pensions, &c.,
for school
board officers
other than
teachers.

33. Nothing in the Education (Scotland) Acts shall render it illegal for a school board with the consent of the Department to grant pensions, gratuities, or retiring allowances to officers and servants of the school board, other than teachers, who are incapacitated by age or infirmity.

Interpretation.

34. In this Act the following words and expressions have the meanings herein-after assigned to them unless such meaning is inconsistent with the context (that is to say):—

The expression "the Department" means the Scotch Education Department:

The expression "intermediate school" means a school or department of a school recognised by the Department as providing at least a three years' course of instruction in languages, mathematics, science, and such other subjects as may from time to time be deemed suitable for the instruction of pupils who have reached the stage of attainment in elementary subjects indicated in the first section of Article 29 of the Code of Regulations for day schools of 1908, or the corresponding standard prescribed by minutes of the Department for any subsequent year:

The expression "secondary school" means a school or department of a school recognised by the Department as providing at least a five years' course of instruction as aforesaid:

The expression "central institution" means one of the central institutions enumerated in the Second Schedule to this Act and any others which may subsequently be recognised as central institutions by minutes of the Department laid before Parliament:

The expression "day school" means a school or department of a school—

(a) conducted in accordance with the code of regulations of the Department for day schools, or

(b) providing a curriculum approved by the Department in terms of the regulations for the time being in force as to grants to secondary schools:

The expression "continuation class" means a class conducted in accordance with the Code of Regulations of the Department for classes providing further instruction for pupils who have left school:

The expression "the accountant of the Department" means the accountant appointed in pursuance of the fiftieth section of the Education (Scotland) Act, 1872:

The expression "provincial committee" means one of the committees for the training of teachers established by the minute of the Department dated the thirtieth day of

January one thousand nine hundred and five and includes any body that may hereafter be appointed in lieu thereof; and the expression "training centre" means the organisation for the training of teachers conducted by a provincial committee :

Except in section six of this Act, the expression "parent" includes guardian and any person who is liable to maintain or has the actual custody of the child or young person ; and in section six the expression "guardian" includes any person as aforesaid :

The expression "state-aided school," where occurring in the Education (Scotland) Acts, 1872 to 1908, or any of them, means a school entitled to participate in the grant in relief of school fees in terms of the conditions set forth in the Scotch Education Code annually submitted to Parliament or a school in receipt of any other grant from the Department a condition of which is that the average fee per child shall not exceed ninepence a week or such other sum as may be fixed from time to time by regulations of the Department.

35. The enactments specified in the Third Schedule to this Act are hereby repealed to the extent mentioned in the third column thereof, and all enactments inconsistent with this Act are also hereby repealed. Repeal.

36. Except as otherwise provided, this Act shall commence on the first day of January one thousand nine hundred and nine. Commencement of Act.

SCHEDULES.

FIRST SCHEDULE.

Section 10.

SECTIONS 185, 186, AND 187 OF THE PUBLIC HEALTH (SCOTLAND) ACT, 1897.

185. Byelaws made by a local authority under this Act shall not take effect unless and until they have been submitted to and confirmed by the Board, who are hereby empowered to allow, modify, or disallow the same as they may think proper, nor shall any such byelaws be confirmed—

Unless notice of intention to apply for confirmation of the same has been given in one or more of the local newspapers circulated within, or by handbills posted throughout, the district to which such byelaws

Unless for one month at least before any such application is considered a copy of the proposed byelaws has been kept at the office of the local authority, and in the case of districts other than burghs at the office of the parish council of every parish to which such byelaws relate, and has been open during office hours thereof to the inspection of the ratepayers of the district to which such byelaws relate without fee or reward.

Any person aggrieved by any proposed byelaw, or by any proposed alteration of a byelaw, may, within such last-mentioned month, forward notice of his objection to the Board, who shall consider the same before granting confirmation.

The clerk of the local authority shall, on the application of any such ratepayer, furnish him with a copy of such proposed byelaws or any part thereof, on payment of sixpences for every hundred words contained in such copy.

A byelaw when confirmed by the Board shall not require confirmation, allowance, or approval by any other authority.

Byelaws to be
printed, &c.

186. All byelaws made by a local authority under this Act shall be printed and hung up in the office of such authority, and be open to the inspection of any ratepayer of the district at all reasonable hours; and a copy thereof shall be delivered to any ratepayer of the district to which such byelaws relate, on his application for the same; a copy of any byelaws made by a district committee shall also be transmitted to the parish council of every parish to which such byelaws relate, to be deposited with the public documents of the parish, and to be open to the inspection of any ratepayer of the parish at all reasonable hours, and a copy thereof shall be delivered to any ratepayer of the parish on his application for the same.

Evidence of
byelaws.

187. A copy of any byelaws made under this Act by a local authority, signed and certified by the clerk of such authority to be a true copy and to have been duly confirmed, shall be evidence until the contrary is proved in all legal proceedings of the due making, confirmation, and existence of such byelaws without further or other proof.

Section 21.

SECOND SCHEDULE.

CENTRAL INSTITUTIONS.

Aberdeen, Gordon's College and Gray's School of Art.
Aberdeen and North of Scotland College of Agriculture.
Dundee Technical Institute.
Edinburgh and East of Scotland College of Agriculture.
Edinburgh, Heriot-Watt College.
Edinburgh College of Art.
Glasgow Athenaeum Commercial College.
Glasgow and West of Scotland Technical College.
The West of Scotland Agricultural College.
Glasgow School of Art.
Leith Nautical College.

THIRD SCHEDULE.

Section 55.

ACTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
35 & 36 Vict. c. 62.	Education (Scotland) Act, 1872.	Section forty-eight, in part, namely— From the words "And once in each year." to the end of the section. Section forty-nine. Section sixty-two. Section sixty-three. Section sixty-four. The words "nor more than fifteen" in paragraph one of Schedule B.
39 & 40 Vict. c. 78.	Elementary Education Act, 1876.	Section fifty-three.
41 & 42 Vict. c. 78.	Education (Scotland) Act, 1878.	Section eighteen.
46 & 47 Vict. c. 56.	Education (Scotland) Act, 1883.	Section nine.
55 & 56 Vict. c. 63.	Technical Instruction Amendment (Scot- land) Act, 1892.	The whole Act.
61 & 62 Vict. c. 57.	Elementary School Teachers' Super- annuation Act, 1898.	Subsection (6) of section twelve.
1 Edw 7, c. 9.	Education (Scotland) Act, 1901.	Section one.

CHAPTER 64.

An Act to consolidate the Enactments relating to Agri-
cultural Holdings in Scotland. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:

COMPENSATION FOR IMPROVEMENTS ON HOLDINGS.

1.—(1) Where a tenant of a holding has made thereon any
improvement comprised in the First Schedule to this Act he shall, subject as in this Act mentioned, be entitled, at the
Right of tenant to compensation for improvements